

The circumstances were shortly these. The weakness and extravagance of the king had emptied the treasury; and his favours had been conferred on a set of courtiers who obtained his countenance by encouraging his follies. They gradually acquired so great a portion of the royal power that the nobles became disgusted; while the people complained of the taxes imposed upon them to supply funds which they saw were improperly squandered. The discontent rose to such a pitch, that the parliament which met in Oct. 1386, 10 Richard II., not only impeached the chancellor De la Pole, Earl of Suffolk, one of the favourites, but took all the practical business of the state out of the king's hands, by appointing a number of commissioners by whom all acts were to be done, and the whole expenditure of the kingdom was to be regulated. This ordinance was not only passed into a law, but confirmed by the king's letters patent. The fallen courtiers, and especially the convicted chancellor, advised the king in the following year to resume his authority; and with the intent of enabling him, under the semblance of right, to do so, they took measures to obtain the highest judicial opinion that the ordinance was illegal and derogatory to the king; that the promoters of it were traitors, and liable to the punishment of death; and that the sentence against De la Pole was revocable as contrary to law. Sir Robert Tresilian, the chief justice, who was already devoted to their party, having prepared a series of questions, with answers suitable to the above object, laid them before the judges who had been summoned for the purpose in August, 1387, first to Shrewsbury, and then to Nottingham.

For several years before this period, there had been only one puisne judge of the Court of King's Bench; and I am inclined to think that David Hannemere, who certainly held that office at the end of the previous year, was at this time either dead or dying; for his name does not appear among the judges